

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502807	SILVA VS COUNTY OF RIVERSIDE	DEMURRER

Tentative Ruling:

The meet-and-confer requirement has been met.

The Government Claims Act is “a comprehensive statutory scheme that sets forth the liabilities and immunities of public entities and public employees for torts.” (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 969, fn. 5.) Under the Act, liability of a public entity may be direct or derivative. (*McCarty v. State of California Dept. of Transp.* (2008) 164 Cal.App.4th 955, 975.)

A public entity such as the County can only be held directly liable for violation of a duty imposed by statute or law. The Act declares that except as otherwise provided by statute, “a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, § 815, subd. (a).) This means that “there is no [governmental] entity liability, unless it is established by statute.” (*Bradford v. State of California* (1973) 36 Cal.App.3d 16, 19; Code Civ. Proc., § 815.6.) “ [T]here is no common law tort liability for public entities in California; such liability is wholly statutory. [Citations.] [Citations.]” (*Ibid.*)

A public entity is ordinarily vicariously liable “for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, §815.2(a).)

First, the fact a cause of action is identical to another is not a cause for a demurrer. (*McDonell v. American Trust Co.* (1955) 130 Cal.App.2d 296, 303 [“ ‘redundancy’ is not a cause for demurrer as it is not one of the grounds for demurrer’ ”].) The County demurs to the first cause of action for general negligence/ violation of Government Code on the ground that the TAC merely copies its prior allegations without change. The Court has previously sustained the demurer on the first cause of action alleged in Plaintiff’s SAC for lack of allegation of any statutory basis giving rise to a mandatory duty to hold the County directly liable on either a negligent supervision/training or negligent entrustment theory. It is true, as the County notes, the allegations supporting the first cause of action remain unchanged. Other than renumbering and reorganizing the allegations supporting the first cause of action into a separate attachment (Attachment 1), the TAC does not differ in any manner to the SAC. Like the SAC, Plaintiff’s first cause of action alleges series of overly padded and generalized allegations and references numerous provisions of the Government Code (§§ 815. 815.4, 815.6, 820) and Vehicle Code (§§ 21056, 21453, 21800, 22350, 17001) without supplying the specific facts directly related to any of these provisions. Plaintiff concedes as much and asserts that the same facts and statutory bases supporting his second cause of action (Gov. Code, § 815.2; Veh. Code, § 17001) also provides the bases for

his first cause of action. Absent a separate basis for a mandatory duty, the first cause of action is merely duplicative of the second cause of action on which the previous demurrer was overruled. However, Plaintiff is correct in noting that the duplicative nature of the causes of action is not a ground to sustain a demurrer listed under Code of Civil Procedure section 430.10. Nor is it a proper ground to move to strike. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890 [noting elimination of redundancy as a ground to strike rested on rationale “that it is a waste of time and judicial resources to entertain a motion challenging part of a pleading on the sole ground of repetitiveness”].)

Second, although no direct liability for negligent supervision/training is alleged, the allegations are sufficient to support a claim the County is vicariously liable for the negligence of other employees who were responsible for hiring, supervising, training, or retaining the employee. It is true negligent hiring is a form of direct liability; the fault is the employer’s own failure to act with due care in selecting the and managing employees. (*Flores v. Autozone West, Inc.* (2008) 161 Cal.App.4th 373, 383-384.) Negligent hiring occurs where an employer knows or should know that an employee creates a risk of a particular harm, and that harm materializes. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.) As mentioned above, a public entity cannot be directly liable for common law tort unless mandated by statute, and a direct tort claim against a governmental entity for negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the government to the injured party, cannot lie. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 867.) However, in *C.A.* (an action by student against a school district for sexual assault by guidance counselor), the court distinguished the claim for negligent hiring or supervision directly against the school district to one based in respondeat superior for the negligence of other employees who were responsible for hiring, supervising, training, or retaining the employee who committed the misconduct. (*Id.* at 868; Gov. Code, § 815.2.) Therefore, a public entity may be vicariously liable for negligent supervision, retention, or hiring committed by its supervising employees. (See *Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, 25.)

The County argues that, in order to allege a cause of action for negligent supervision/training, Plaintiff must provide details such as a claimed employee who was unfit, that this unfitness caused the incident, that another employee of County was responsible for hiring/supervision, and knew of the alleged unfitness. However, generalized pleading is acceptable for claims based on vicarious liability for acts committed in the scope of employment. (See *Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 157.) Here, the TAC alleges that the County is liable for the acts of supervising employees’ negligent hiring, training, and supervision of Defendant Lufkin in operating the County’s vehicle and that Defendants actually and proximately caused damages to Plaintiff and his vehicle. (TAC, Attachment One, pg. 5, ¶ 11.) The County cites no statute or decision requiring a plaintiff to specify at the pleading stage which of the defendant’s employees committed the negligent acts or omissions for which a public entity is allegedly liable under section 815.2. As noted by the Supreme Court, there is no authority which requires that the “plaintiff must specifically plead, before undertaking

discovery, the identity of a government employee whose alleged negligence is made the basis for vicarious liability under section 815.2, and ... such an impracticable rule would be consistent with the legislative intent in enacting that statute. [Citation.] (*C.A., supra*, 53 Cal.4th at 872, citing Sen. Legis. Com. com., reprinted at 32 West's Ann. Gov. Code (1995 ed.) foll. § 815.2, p. 179 ["Under this section, it will not be necessary in every case to identify the particular employee upon whose act the liability of the public entity is to be predicated"].)

The demurrer is overruled.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503346	THOMAS VS ANIMAL HOSPITAL OF EAGLE GLEN	MOTION TO COMPEL DEPOSITION ANSWERS

Tentative Ruling:

The Amended Declaration of Ben Twisk ("Amended Twisk Decl.") shows compliance with the meet-and-confer requirement.

At the June 16, 2026 deposition of Defendant Christine Farrar, defense counsel instructed the witness not to answer four separate lines of proper questions. The centerpiece of the improper instructions concerns two video recordings that Plaintiff made of a December 16, 2024 disciplinary confrontation. Defense counsel took the position that the recordings are "confidential communications" that violate Penal Code section 632, and on that basis instructed Ms. Farrar not to answer any question "related to the video, the contents of the video," or the second recording. (Christine Farrar Depo. 89:1-18; 90:12-22.)

The instruction was improper for two reasons. First, the recordings are not "confidential communications" within the meaning of Penal Code section 632, because the recorded conversations occurred in circumstances in which the parties could reasonably expect to be overheard. One conversation occurred in an open, public shopping-center patio and, for the second recording, the public lobby of a veterinary clinic. Ms. Farrar's own testimony, and that of Plaintiff, confirm as much. Second, even if section 632 applied (it does not), a section 632 objection is not a privilege, a court-ordered limitation, or a basis to suspend the deposition for a protective order, which are the only three grounds on which counsel may properly instruct a deponent not to answer. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1014-1015.)

The Opposition never responds to the above. It does not cite *Stewart* or section 2025.460, and it identifies no privilege, no court-ordered limitation, and no motion for a protective order, because Defendants did not seek a protective order. Instead, Defendants argue only that the recordings are inadmissible. Admissibility is a question that this Court decides on a proper record and is not a basis for counsel to foreclose the